

FEDERAL MARITIME COMMISSION

EALYTEX GLOBAL INC., *Complainant*

v.

COSCO SHIPPING LINES CO., LTD., *Respondent*.

DOCKET NO. 26-08

Served: June 3, 2026

NOTICE OF FILING OF COMPLAINT AND ASSIGNMENT

Notice is given that a complaint has been filed with the Federal Maritime Commission (the “Commission”) by Ealytex Global Inc. (the “Complainant”) against COSCO Shipping Lines Co., Ltd. (the “Respondent”). Complainant states that the Commission has jurisdiction over the complaint pursuant to the Shipping Act of 1984, as amended, 46 U.S.C. §§ 40101 *et seq.*, and personal jurisdiction over Respondent as an “ocean common carrier,” as that term is defined in 46 C.F.R. § 520.2.

Complainant is a corporation organized under the laws of the state of New York with its principal place of business in New York City, New York.

Complainant identifies Respondent as a vessel-operating ocean common carrier, as defined in 46 U.S.C. § 40102(18), with its principal place of business located in Shanghai, China, whose agent in the United States is located in Secaucus, New Jersey.

Complainant alleges that Respondent violated 46 U.S.C. §§ 41102(c) and 41104(a)(10), and 46 C.F.R. § 545.5. Complainant alleges these violations arose from the assessment of detention and demurrage charges during periods of time in which Complainant’s ability to move its containers was constrained due to circumstances beyond its control, the promise of refunds for

some of those charges that have remained unfulfilled, the issuance of improper invoices, and other acts or omissions by Respondent.

An answer to the complaint must be filed with the Commission within 25 days after the date of service.

The full text of the complaint can be found in the Commission's electronic Reading Room at <https://www2.fmc.gov/readingroom/proceeding/26-08/>. This proceeding has been assigned to the Office of Administrative Law Judges. The initial decision of the presiding judge shall be issued by June 3, 2027, and the final decision of the Commission shall be issued by December 17, 2027.

David Eng
Secretary